

Tentative Rulings for Department 403

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Tentative Ruling

Re: **Conquest v. Doe et al.**
Superior Court Case No. 23CECG01521

Hearing Date: June 10, 2026 (Dept. 403)

Motion: Motion to Bifurcate

**If oral argument is timely requested, it will be entertained on
Thursday, June 11, 2026, at 3:30 p.m. in Department 403.**

Tentative Ruling:

To deny. (Code Civ. Proc., §§ 598, 1048, subd. (b).)

Explanation:

Plaintiff James Conquest filed a complaint for damages and personal injuries based on negligence and premises liability against defendants Costco Wholesale Corporation (Costco) and Kathy Doe. Plaintiff alleges he was injured while shopping at a Costco warehouse store, when his foot struck a pallet causing him to endure severe injury and pain.

Costco now moves to bifurcate issues of liability and damages.

The court is given great discretion in regard to the order of issues at trial:

The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order...that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case....

(Code Civ. Proc., § 598.)

Similarly, Code of Civil Procedure section 1048, subdivision (b), specifies the court's discretion in regard to bifurcating issues for separate trial:

The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action ... or of any separate issue or of any number of causes of action or issues.

These sections are generally relied upon for bifurcation, usually to try issues of liability before damages issues. "It serves the salutary purpose of avoiding wasting time and money, and prevents possible prejudice to a defendant where a jury might look past liability to compensate a plaintiff through sympathy for his or her damages." (Weil & Brown (TRG 2019) *California Practice Guide: Civil Procedure Before Trial*, § 12:414.) The decision to grant or deny a motion to bifurcate issues, and/or to have separate trials, lies

Based on the information and evidence presented, bifurcating the trial of liability and damages would not promote economy and efficiency. While trial time may be saved in the event bifurcation were ordered and the jury found Costco not liable, as plaintiff points out, bifurcation is not the default in personal injury cases. Under Costco's rationale, bifurcation would be ordered in every disputed liability case would result in a bifurcated trial. Bifurcating the trial could result in a longer, not shorter, trial because there would be two sets of opening statements, two sets of closing arguments, and two sets of jury deliberations. The court does not believe there is any significant risk of prejudice to Costco in the jury hearing evidence of plaintiff's injuries and damages before deliberating on liability. Accordingly, the court intends to deny the motion.

Tentative Ruling

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